

		Counsel for Plaintiff is ordered to give notice and submit a proposed judgment with a proof of service within 15 days
5	Doe 1 v. Crossline Community Church	O/C
6	Casares vs. City of Newport Beach	Defendant City of Newport Beach's ("Defendant") Motion for Summary Judgment is GRANTED. Defendant moves for summary judgment against plaintiff Kelly Casares's ("Plaintiff") complaint on the bases that 1) Plaintiff's lawsuit is barred by the statute of limitations; 2) Defendant is not liable to injuries caused by a plan or design; and 3) Plaintiff cannot establish Defendant had actual or constructive knowledge of a dangerous condition. (Civ. Proc. Code § 437c(p)(2).) 1) Statute of Limitations As to the statute of limitations, Gov't. Code § 911.2 requires that a claim for damages for any cause of action other than an action for death or personal injury should be made "not later than six months after the accrual of the cause of action." Upon presentation of the claim, the entity may: (1) reject the claim, (2) allow the claim, (3) allow or reject the claim in part, or (4) compromise the claim. (Gov't. Code § 912.6.) A plaintiff must commence a suit against the public entity no later than six months after the date the notice of rejection is personally delivered or deposited in the mail. (Gov't. Code § 945.6(a)(1).) However, if the public entity fails to provide written notice in accordance with the service requirements of section 913, a claimant has two years from the accrual of the cause of action to file suit. (Gov't. Code § 945.6(a)(2).) Defendant produced evidence that Defendant, through its claims administrator AdminSure, served a rejection of Plaintiff's claim on 03/20/24. (Santos Decl. ¶¶ 2, 8-18, Ex. B.) The Rejection complied with Gov't. Code § 913 and notified Plaintiff of the filing deadline for any lawsuit based upon the Claim. That Plaintiff claims she did not receive the rejection does not support overcoming the six month limitations period. (<i>Him v. City & Cnty. of San Francisco</i> (2005) 133 Cal. App. 4th 437, 445-46.) Defendant met its initial burden on the statute of limitations having run prior to the complaint being filed. Plaintiff argues Defendant is estopped from claiming the statute of limitations. "The elements of equitable estoppel have been applied in the government claims context. "(1) [T]he party to be estopped [here, the District] must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party [here, J.M.] must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury."`" (<i>J.M. v. Huntington Beach Union High Sch. Dist.</i> (2017) 2 Cal. 5th 648, 656.) Plaintiff produced evidence Defendant was aware of the facts regarding the injury, claim, rejection, and limitations period, yet AdminSure staff allegedly told Plaintiff's